

HOUSE BILL 1745

By Freeman

AN ACT to amend Tennessee Code Annotated, Title 2 and
Title 40, relative to voting rights.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 2-2-102, is amended by deleting subsection (a) and substituting instead:

(a) A citizen of the United States eighteen (18) years of age or older who is a resident of this state is a qualified voter unless the citizen is:

(1) Disqualified under this title; or

(2) Currently imprisoned in a penal institution, on probation, or on parole for a judgment of infamy pursuant to § 40-20-112.

SECTION 2. Tennessee Code Annotated, Section 2-2-139(a), is amended by adding the following new subdivision:

(4) The person's right of suffrage has been restored due to the expiration of the sentence imposed for the infamous crime.

SECTION 3. Tennessee Code Annotated, Section 2-19-143(a), is amended by deleting the subsection and substituting instead:

(a) The following provisions govern the exercise of the right of suffrage for those persons convicted of an infamous crime:

(1) A person who has been convicted of an infamous crime, as defined by § 40-20-112, in this state shall not register to vote or vote at any election unless:

(A) The person has been pardoned by the governor. However, the governor may attach to any such pardon a special condition that such

person shall not have the right of suffrage until a date certain in the future, or until the expiration of the pardoned sentence, whichever period of time is less;

(B) The person's full rights of citizenship have been restored as prescribed by law; or

(C) The person's right of suffrage has been restored due to the expiration of the sentence imposed for the infamous crime;

(2) A person who has been convicted in federal court of a crime or offense that would constitute an infamous crime under the laws of this state, regardless of the sentence imposed, shall not register to vote or vote at any election unless:

(A) The person has been pardoned or the person's full rights of citizenship have been restored by the president of the United States;

(B) The person's full rights of citizenship have otherwise been restored in accordance with federal law or the law of this state; or

(C) The person's right of suffrage has been restored due to the expiration of the sentence imposed for the infamous crime; and

(3) A person who has been convicted in another state of a crime or offense that would constitute an infamous crime under the laws of this state, regardless of the sentence imposed, shall not register to vote or vote at any election in this state unless:

(A) The person has been pardoned or the person's full rights of citizenship have been restored by the governor or other appropriate authority of such other state;

(B) The person's full rights of citizenship have otherwise been restored in accordance with the laws of such other state, or the law of this state; or

(C) The person's right of suffrage has been restored due to the expiration of the sentence imposed for the infamous crime.

SECTION 4. Tennessee Code Annotated, Section 40-29-102, is amended by adding the following as a new subsection:

(d) Notwithstanding subsection (a), and except as provided in subsections (b) and (c), a person's right of suffrage is automatically restored upon the person's discharge from custody by reason of service or expiration of the maximum sentence imposed by the court for the infamous crime. A county election commission shall accept the person's discharge documentation as proof of the restoration of the right of suffrage.

SECTION 5. Tennessee Code Annotated, Section 40-29-103, is amended by deleting subsection (g) and subdivisions (a)(4), (e)(1)(A), (e)(2)(A)(ii), and (e)(2)(B).

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it, and applies to sentences completed or expired, or crimes that have been pardoned, after such date.